

25NNCV01281 25NNCV01281

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 25NNCV01281 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: 7

Date: June 26, 2026

Case No: 25NNCV01281 Trial Date: June 1, 2027

Case Name: Santana v. American Honda Motor Co., et al.

MOTIONS TO COMPEL DEPOSITION

[CCP § 2025.450 subd. (a)]

Moving Party: Defendant, American Honda Motor Co., Inc.

Responding Party: Plaintiffs, Juan Carlos Rosales Santana and Timotea Martinez [Unopposed]

RELIEF REQUESTED:

Order compelling the depositions of Plaintiffs Juan Carlos Rosales Santana and Timotea Martinez.

CAUSES OF ACTION: from Complaint

1) Violation of Song-Beverly Act [Breach of Express Warranty]

2) Violation of Song-Beverly Act [Breach of Implied Warranty]

3) Violation of Song-Beverly Act [Section 1793.2]

CHRONOLOGY:

Notice of Deposition Served: July 25, 2025 / December 4, 2025

Date of Deposition [10-day lapse]: August 29, 2025 / February 11, 2026

Motion Served: March 9, 2026

SUMMARY OF FACTS:

Juan Carlos Rosales Santana and Timotea Martinez ("Plaintiffs") allege that on October 18, 2024, they leased a 2024 Honda Prologue for which American Honda Motor Co., Inc. ("Defendant") issues an express warranty. Plaintiffs allege that the vehicle was delivered with serious defects and nonconformities to warranty and developed other serious defects and nonconformities to warranty including, but not limited to, suspension and steering structural system defects. The Complaint alleges that notwithstanding Plaintiffs' entitlement, Defendant has failed to either promptly replace the motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (CCP, § 2025.450 subd. (a).)

On July 25, 2025, Defendant noticed Plaintiffs' depositions for August 29, 2025. (Sadanaga Decl., ¶ 2, Ex. A.) On August 22, 2025, Plaintiffs served objections to the deposition notice because Plaintiffs and their counsel were unavailable on the date noticed. (Sadanaga Decl., ¶ 3, Ex. B.) Counsel met and conferred and agreed upon an alternative date of February 11, 2026. (Sadanaga Decl., ¶ 4, Ex. C.) On December 4, 2025, Defendant noticed the amended deposition date. (Sadanaga Decl., ¶ 5, Ex. D.) On February 4, 2026, Plaintiffs served objections to the deposition notice on the grounds that Plaintiffs and their counsel were unavailable on the date noticed. (Sadanaga Decl., ¶ 6, Ex. E.) Defendant asserts that despite multiple informal and formal requests, Plaintiffs have failed to provide any alternative dates for the depositions and have not provided the requested document production. (Sadanaga Decl., ¶ 7.)

Plaintiffs have not opposed these motions and thus have offered no explanation for their failure to appear for their noticed depositions. Thus, the motions are GRANTED.

Request for Sanctions

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP, § 2025.450 subd. (g)(1).)

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

The burden is on the party subject to sanctions to show substantial justification or injustice. (Mattco Forge, Inc. v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1436.)

Defendant requests sanctions in the amount of \$1,815.00 per motion. The amount requested is high for motions of this nature, particularly given that the two motions are largely duplicative and no opposition or reply was filed. Moreover, the hearings on the motions are scheduled concurrently, require minimal preparation and can be attended remotely. The sanctions are adjusted accordingly. Sanctions are awarded as follows: 3.4 hours at \$325.00 per hour for attorneys' fees of \$1,105.00 per motion.

RULING:

Defendant's Motion to Compel Deposition of Plaintiff Timotea Martinez Rosales is GRANTED.

The Court orders that the deposition take place within 30 days of this order, no later than July 26, 2026.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$1,105.00 (3.4 hours @ \$325/hour) [5.4 hours requested] plus \$60.00 in filing fees [Amount Requested \$1,815.00], which sum is to be awarded in favor of Defendant American Honda Motor Co., Inc., and against Plaintiff Timotea Martinez Rosales and Plaintiff's attorney of record, jointly and severally, payable within 30 days. (CCP § 2025.450, subd. (g)(1); CRC Rule 3.1348(a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this order.

Defendant's Motion to Compel Deposition of Plaintiff Juan Carlos Rosales Santana is GRANTED.

The Court orders that the deposition take place within 30 days of this order, no later than July 26, 2026.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$1,105.00 (3.4 hours @ \$325/hour) [5.4 hours requested] plus \$60.00 in filing fees [Amount Requested \$1,815.00], which sum is to be awarded in favor of Defendant American Honda Motor Co., Inc., and against Plaintiff Juan Carlos Rosales Santana and Plaintiff's attorney of record, jointly and severally, payable within 30 days. (CCP § 2025.450, subd. (g)(1); CRC Rule 3.1348(a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.